

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
L.N., an Infant under the age of thirteen, by and through
her father and natural guardian ROBERT NIEVES,
and ROBERT NIEVES, Individually as Father of L.N.,

Plaintiffs,

-against-

THE CITY OF NEW YORK, NYPD OFFICER JESSICA
FUENTES, Shield #4414, NYPD LIEUTENANT BETSY
GUZMAN, ACS CHILD PROTECTIVE EMPLOYEE
KERLYNE DERISCAR-HINDS, and JOHN/JANE DOES
1-10,

Defendants.
-----X

COMPLAINT

Index No.:

Date Purchased:

Plaintiff designates
KINGS County as the
Place of Trial

Venue Based on
Plaintiff's Residence

Jury Trial Demanded

Plaintiffs, appearing by their attorney, BARKET, MARION, EPSTEIN & KEARON,
LLP, hereby allege against Defendants as follows:

PARTIES

1. L.N. is a twelve year old autistic child and the daughter of Plaintiff Robert Nieves.

2. At the time of the incident in question, Plaintiff Robert Nieves resided in Kings County, New York, and his arrest, which among other things is the subject of the incident in question, took place in Kings County, New York.

3. Defendant City of New York was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

4. Defendant City of New York maintains the New York City Police Department (hereinafter "NYPD"), a duly authorized public authority and/or police department, authorized

to perform all functions of a police department as per the applicable sections of the aforementioned municipal corporation, the City of New York.

5. Defendant NYPD Officer Jessica Fuentes, NYPD Officer Betsy Guzman, and NYPD John/Jane Doe Officers 1-5 (collectively the “NYPD Defendants”), at all times relevant herein, were duly sworn officers, employees and agents of the NYPD and were acting under the supervision of said department and according to their official duties. NYPD

6. Defendants are sued in their individual capacities.

7. Defendant City of New York maintains the Administration for Children’s Services (“ACS”), a duly authorized public authority, authorized to protect and promote the well-being of New York City’s families and children by providing child welfare, juvenile justice, and early care and education services as per the applicable sections of the aforementioned municipal corporation, the City of New York.

8. Defendant ACS Child Protective Specialist (“CPS”) Kerlyne Deriscar-Hinds and ACS John/Jane Doe Employees 5-10 (collectively the “ACS Defendants”), at all times relevant herein, were duly sworn officers, employees and agents of the ACS and were acting under the supervision of said department according to their duties. ACS Officer Defendants are sued in their individual capacities.

9. That at all times hereinafter mentioned Defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State of New York and/or the City of New York.

10. Each and all of the acts of the Defendants were done by said Defendants while acting within the scope of their employment by Defendant City of New York.

STATEMENT OF FACTS

11. L.N. was nine years old when this incident began; she was in Mr. Nieves' custody who was the sole guardian at the time.

12. When L.N. was six years old, her mother moved out of state.

13. In November of 2014, L.N. attended AHRC Brooklyn Blue Feather Elementary School.

14. L.N. had and has an IEP (Individual Education Plan); she received and receives many services.

15. On November 3, 2014, L.N.'s school alleged that L.N. reported that her father had licked her vagina even though the transcript of the school's interview clearly reveals that L.N. repeatedly claimed that her father was looking in her pants (as he was adjusting her clothing as he regularly did for L.N.).

16. When repeatedly questioned, L.N. even yelled "LOOK" and repeated that her father was fixing her pants and "looking" in her pants, not "licking" in her pants.

17. A year prior to this incident, L.N. was evaluated by Dr. Nishawala who is an expert in child psychiatry and autism.

18. Dr. Nishawala reported that L.N.'s weakness is in assessing what is real and what is not and that she does not always know what is real and what comes from a television show she watched.

19. L.N.'s school reports indicate that L.N., like many autistic individuals, often repeats phrases, commonly referred to as scripting.

20. Dr. Nishawala explains that repetition by an autistic child does not establish that a statement is an accurate fact but rather the autistic child enjoys something about saying it.

21. When specifically discussing L.N, Dr. Nishawala stated that L.N. is more likely to pick the last thing stated when given choices and is more likely to be influenced by what an examiner says to her.

22. In her work with L.N., Dr. Nishawala determined that L.N. was an unreliable reporter.

23. When the school notified ACS Defendants, ACS Defendants were made aware of L.N.'s diagnosis, were given access to her school records as well as the transcription of the interview of L.N. which they conducted that day.

24. Shortly after L.N. returned home from school on November 3, 2014, ACS Defendants came to the Nieves home and told Mr. Nieves that he and his daughter needed to come with them to ACS headquarters.

25. Mr. Nieves and his daughter accompanied the ACS Defendants to the Brooklyn Child Advocacy Center.

26. While at the Child Advocacy Center (CAC), L.N. was questioned again; Detective Fuentes watched the questioning and submitted questions to the therapist to ask L.N.

27. Although the CAC interview room is equipped with video recording equipment, L.N.'s interview was not recorded or videotaped.

28. Mr. Nieves was taken into an interrogation room where he was questioned by Defendant Fuentes, who then arrested him and charged him with sexual abuse in the first

degree, a class D felony, criminal sexual act in the third degree, a class E felony, and endangering the welfare of a child, a class A misdemeanor.

29. Defendant Fuentes determined that L.N. should be removed from the home and placed with ACS.

30. As a result, L.N. was removed from her father's custody; Mr. Nieves did not see his daughter for two and one-half years.

31. On November 5, 2014, ACS filed a petition in New York State Family Court against Mr. Nieves alleging criminal sexual act in the first degree, second degree, and third degree, and sexual abuse in the first degree, second degree, and third degree, as to his daughter, in violation of New York Penal Law.

32. On November 17, 2014, a grand jury of Kings County indicted Mr. Nieves on the charges of attempted criminal sexual act in the first degree, sexual abuse in the first degree and in the second degree, attempted sexual misconduct and endangering the welfare of a child.

33. Between June 8, 2016 and September 9, 2016, the Family Court heard testimony regarding ACS's petition.

34. Dr. Nishawala, a child psychiatrist, board certified in child, adolescent, and adult psychiatry and the medical director for an autism spectrum disorder clinical and research program at the Child Study Center at New York University Langone Medical Center, was called as a witness for Mr. Nieves.

35. Dr. Nishawala testified that she regularly makes clinical determinations about whether a child is an accurate reporter, that she evaluated L.N. in 2013 and again in 2015, and that L.N. is an unreliable reporter.

36. Significantly, Dr. Nishawala testified that in order to assess whether an autistic child is an accurate reporter, it is critical to have an understanding of autism.

37. ACS called as their witness, Anne Meltzer, a psychologist, who evaluated L.N.

38. Ms. Meltzer testified that L.N.'s autism made the assessment process more challenging, that L.N. was very distracted, and that she had only assessed "at least one other" autistic child.

39. Ms. Meltzer changed her opinion as to the reliability of L.N.'s statements.

40. In September of 2015 she had provided a report and then in October of 2015 she had been provided with two reports from Dr. Nishawala, some audio recordings of a school conference with Mr. Nieves and L.N.'s teachers, and a tape recording made by L.N.'s grandmother while having a conversation with L.N.

41. Ms. Meltzer testified that the grandmother's recording concerned her because L.N. made some incredulous statements about being abused at school while laughing.

42. In fact, On December 5, 2014, after Mr. Nieves was indicted, L.N.'s home attendant discovered red marks on L.N.'s buttocks. When L.N.'s grandmother questioned L.N., she stated that both the Behavior Trainer and the Behavior Trainer Assistant at her school had pinched her buttocks.

43. On December 9, 2014, an investigation was conducted.

44. Interviews with classroom staff and with a Department of Education Interpreter, who were present in the classroom on the date of the incident, were conducted.

45. The school principle relayed that L.N. had thrown herself onto the floor and pulled off her pants 4-5 times; she indicated that no one touched L.N.

46. Based upon the interviews that were conducted, the allegations were determined

to be false.

47. Additionally, approximately one year prior to Mr. Nieves' arrest, L.N. had accused a bus matron of physically attacking her on a school bus while on the way to Blue Feather School.

48. The matron was suspended pending an investigation.

49. The investigation involved questioning the matron and another person who was on the bus during the incident.

50. The investigators determined that the incident did not occur and that L.N. had created the accusations.

51. The bus matron was restored to duty where, to this day, she still works with children.

52. In December of 2015, Ms. Meltzer issued an addendum to her original report about L.N. She testified that she drafted the addendum because she could no longer consider that the sex abuse happened given L.N.'s credibility concerns.

53. Nevertheless, ACS continued to prosecute the petition against Mr. Nieves until the court dismissed the petition on March 1, 2017.

54. The criminal prosecution against Mr. Nieves continued until ACS's petition was dismissed; then, on February 14, 2017, the indictment against Mr. Nieves was dismissed in its entirety.

55. One year prior to Mr. Nieves' arrest, the school had found that L.N. fabricated a story about the bus matron; one year prior to Mr. Nieves' arrest, Dr. Nishawala, an expert in autism had evaluated L.N. and determined that she was an unreliable reporter; the transcribed notes from the school's interview of L.N. on November 3, 2014 indicate that L.N. said "look"

at least six (6) times; specifically stated “look” and not “lick” when “lick” was the answer provided and suggested to her, and even yelled “LOOK” when pushed with the question, “Not licking?”

56. Facts and circumstances existed that raised doubt as to L.N.’s veracity and were completely ignored and/or withheld by NYPD Defendants.

57. Facts and circumstances existed that raised doubt as to L.N.’s veracity and were completely ignored and/or withheld by ACS Defendants.

58. While the prosecutions against Mr. Nieves were pending, it was determined by ACS that red marks which appeared on L.N.’s buttocks were not the result of any abuse on the part of school staff and that L.N.’s claims to the contrary were fabricated.

59. While the prosecutions against Mr. Nieves were pending, ACS’s own evaluator issued a report claiming that she did not believe that the sex abuse happened and that she did not believe that L.N. was credible.

60. Nevertheless, ACS continued the prosecution against Mr. Nieves for fifteen more months, and for that entire time Mr. Nieves was denied any contact with his daughter.

61. None of the NYPD or ACS Defendants possessed an understanding of autism and how it could affect reporting.

62. Defendant Fuentes never consulted with any of L.N.’s doctors to determine L.N.’s diagnosis and how that could affect her reporting.

63. ACS Defendants never consulted with any of L.N.’s doctors to determine L.N.’s diagnosis and how that could affect her reporting.

64. Mr. Nieves was incarcerated for one week and was deprived of necessary medicine for his diabetes.

65. Mr. Nieves was forced to appear in both Family Court and State Supreme Court for two and one half years.

66. Plaintiff suffered damages as a result of Defendants' violations of his rights. Defendants unconstitutionally deprived Plaintiff of his liberty and caused him physical and emotional trauma.

67. All of the above occurred as a direct result of the unconstitutional policies, customs or practices of the City of New York, including, without limitation, the inadequate screening, hiring, retaining, training and supervising of its NYPD employees, and due to a custom, policy and/or practice of allowing inadequate investigations, of disregarding facts or circumstances that cast doubt upon a suspect's culpability, of arresting innocent persons in order to meet "productivity goals," or arrest quotas; arresting individuals for professional advancement, overtime compensation, and/or other objectives outside the ends of justice; and/or manufacturing false evidence against individuals to justify the abuse of authority in falsely arresting, unlawfully stopping and maliciously prosecuting those individuals.

68. In addition, all of the above occurred as a direct result of the City's unconstitutional customs or practices including the inadequate screening, hiring, retaining, training and supervising of its ACS employees, which manifests in an unreasonably high number of unjustified removals founded upon false representations about familial abuse.

69. Defendant City was on notice that ACS Defendants made baseless, uninformed, and false statements in their charges and allegations. Defendant City failed to either establish or follow protocols designed to direct ACS Defendants about applicable legal standards knowing that ACS Defendants were not conducting proper and adequate investigations and

interviews and were conducting removals without conducting proper and adequate investigations and without reasonable and/or probable cause. As a consequence of Defendant City's failure to act despite this knowledge, Defendant City directly caused the violation of Plaintiffs' rights as herein described insofar as the violations were also caused by Defendants' (uncorrected) tendency to fabricate or omit material facts, history, and/or statements.

70. The aforesaid incident is not an isolated incident. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct as documented in civil rights actions filed in the United States District Courts in the Eastern and Southern Districts of New York as well as in New York State courts. As a result, Defendant City of New York is aware (from said lawsuits as well as notices of claims and complaints filed with the NYPD's Internal Affairs Bureau and the CCRB and equivalent institutions corresponding to ACS) that many NYPD and ACS Officers, including the Defendants, falsely arrest individual persons in order to meet productivity goals and arrest quotas in the case of the NYPD and/or pursue unjustifiable petitions, some of them as requiring emergency removals in the case of ACS, all with the individual goal of professional advancement, overtime compensation and/or other objectives outside the ends of justice.

71. Defendant City of New York is thus aware that its improper training and customs and policies have often resulted in a deprivation of individuals' constitutional rights. Despite such notice, Defendant City of New York has failed to take corrective action. This failure caused individual Defendants in this case to violate Plaintiffs' constitutional rights.

72. Moreover, on information and belief, Defendant City of New York was aware, prior to the incident, that the individual Defendants lacked the objectivity, temperament,

maturity, discretion and disposition to be employed as police officers. Despite such notice, Defendant City of New York has retained these officers, and failed to adequately train and supervise them.

73. All of the aforementioned acts of Defendants, their agents, servants and employees were carried out under color of state law.

74. All of the aforementioned acts deprived Plaintiff of the rights, privileges and immunities guaranteed to citizens of the State of New York and the United States by the Fourth and Fourteenth Amendments to the United States Constitution, and in violation of 42 U.S.C. § 1983.

75. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as NYPD Officers and ACS Officers, with the entire actual and/or apparent authority attendant thereto, pursuant to the customs, usages, practices, procedures and the rules of the Defendant City of New York and the NYPD and ACS, all under the supervision of ranking officers of said department.

76. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the New York State and United States Constitution.

77. As a result of the foregoing, Plaintiffs are entitled to compensatory and punitive damages in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

DAMAGES

78. The Defendants' unlawful, negligent, intentional, willful, purposeful, deliberately indifferent, reckless, bad-faith and/or malicious acts, misdeeds and omissions caused Plaintiff's conscious pain and suffering, permanent injuries, and caused the negligent and/or intentional infliction of emotional harm.

79. As a direct and proximate result of the acts of the Defendants, the injuries and damages sustained by Plaintiff Robert Nieves from the deprivation of his civil rights include: violation of clearly established rights under the New York State Constitution and the Fourth and Fourteenth Amendments to the United States Constitution; personal injuries; pain and suffering; severe mental anguish; emotional distress; extreme fear; denial of family integrity and denial of medical care.

80. As a direct and proximate result of the acts of the Defendants, the injuries and damages sustained by Plaintiff L.N from the deprivation of her civil rights include: denial of family integrity

81. All the alleged acts, misdeeds and omissions committed by the individual Defendants described herein for which liability is claimed were done negligently, intentionally, willfully, purposefully, knowingly, unlawfully, maliciously, wantonly, recklessly, and/or with bad faith, and said proscribed conduct of the individual Defendants meets all of the standards for imposition of punitive damages.

82. Damages are in the amount to be determined at trial but are in excess of One Hundred and Fifty Thousand (\$150,000.00) Dollars exclusive of interest and costs.

FIRST CAUSE OF ACTION**FALSE ARREST CLAIM - 42 U.S.C. § 1983**

83. Plaintiffs hereby incorporate by reference all of the foregoing paragraphs and further alleges as follows.

84. That the Plaintiff Robert Nieves' rights have been violated under the Fourth Amendment of the United States Constitution pursuant to 42 U.S.C. § 1983, in that Plaintiff was illegally seized.

85. That the said acts, were caused by the Defendants and unidentified Defendants without any legal justification.

86. That the Defendants caused the confinement of Plaintiff, that the Defendants intended to confine Plaintiff, that Plaintiff was conscious of the confinement, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

87. That the said seizure and unlawful detention was caused by the Defendants acting without authority of the law and without any legal basis or probable cause to believe that Plaintiff was in fact guilty of crimes.

88. That by reason of the unlawful seizure, the Plaintiff incurred physical, emotional and pecuniary harms, suffered humiliation, mental anguish, and embarrassment, loss of employment and he was otherwise injured.

89. That by reason of the aforesaid, the Plaintiff Robert Nieves has been damaged in an amount to be determined at trial and an award of attorney's fees is appropriate pursuant to 42 U.S.C. §1988.

SECOND CAUSE OF ACTION**MALICIOUS PROSECUTION CLAIM - 42 U.S.C. § 1983**

90. Plaintiffs hereby incorporate by reference all of the foregoing paragraphs and further alleges as follows.

91. That the Plaintiff Robert Nieves' rights have been violated pursuant to the United States Constitution.

92. That the said acts, were caused by the Defendants and unidentified Defendants without any legal justification.

93. That the said malicious prosecution was instigated by the Defendants, their agents, servants and employees, without any legal justification to wit, without probable cause and based upon the Defendants' knowingly false statement that Plaintiff committed the crimes of sexual abuse and related charges.

94. Defendants' false statements and false information caused the initiation of criminal and family court proceedings against the Plaintiff.

95. That Plaintiff was arraigned on criminal charges and a criminal prosecution continued against hm.

96. That a petition charging abuse was commenced against Plaintiff.

97. That the said initiation and continuation of criminal and Family Court proceedings was instigated and caused by the Defendants and by Defendants' providing false information, without authority of the law and without any legal basis or probable cause to believe that Plaintiff was in fact guilty of crimes.

98. There was no information sufficient to support a reasonable belief that an offense had been committed.

99. The Defendants' acts were shocking and were performed by the Defendants with deliberate and reckless disregard for the truth and with malice.

100. In fact, all charges against Plaintiff were dismissed.

101. As a direct and proximate result of Defendants' actions, Plaintiff was imprisoned.

102. That by reason of this malicious, Plaintiff incurred physical, emotional and pecuniary harms, suffered humiliation, mental anguish, embarrassment, and he was otherwise injured.

103. That by reason of the aforesaid, the Plaintiff has each been damaged in a sum to be determined by a jury and an award of attorney's fees is appropriate pursuant to 42 U.S.C. §1988.

THIRD CAUSE OF ACTION

DUE PROCESS CLAIM

104. Plaintiffs repeat and re-allege each of the preceding allegations contained in this Complaint with the same force and effect as if fully set forth herein.

105. Defendants violated Plaintiffs' right to family integrity, i.e., the right of a family to stay together without the interference of the power of the state.

106. In so doing, ACS Defendants did not have any cause that excused their use of constitutional procedure to interfere.

107. In so doing, NYPD Defendants did not have any cause that excused their use of constitutional procedure to interfere.

108. Defendants' unlawful actions, which were committed under color of state law, were done willfully, knowingly, with malice and with the specific intent to deprive Plaintiffs of their constitutional rights.

109. As a direct and proximate result of Defendants' unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

FAILURE TO INTERVENE

110. Plaintiffs repeat and re-allege each of the preceding allegations contained in this Complaint with the same force and effect as if fully set forth herein.

111. Individual Defendants actively participated in the aforementioned unlawful conduct but also observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

112. Accordingly, Individual Defendants who failed to intervene violated the Fourth, and Fourteenth Amendments of the United States Constitution.

113. Defendants' unlawful actions, which were committed under color of state law, were done willfully, knowingly, with malice and with the specific intent to deprive Plaintiffs of their constitutional rights.

114. As a direct and proximate result of Defendants' unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION**SUPERVISOR LIABILITY**

115. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the prior paragraphs with the same force and effect as if more fully and at length set forth herein.

116. That the Plaintiffs' rights have been violated under the Fourth and Fourteenth Amendments to the United States Constitution by the Defendants who were supervisors of the officers who violated and abused Plaintiffs' rights.

117. That these Defendants, who were supervisors had actual and constructive knowledge of the illegal seizure, false arrest, assault and various torts which were being committed by their subordinates against the Plaintiffs.

118. That the Defendant supervisors did cause the Plaintiffs' harm by failing to remedy the patterns of false arrest, and assaults and other constitutional violations the Defendants committed after learning of them.

119. That by reason of the failure of the unidentified supervisors, Plaintiff was forced to undergo an unlawful seizure, detention and Plaintiffs incurred physical and emotional harms, suffered humiliation, mental anguish, and deprivation of family integrity and were otherwise injured.

120. That by reason of the aforesaid, the Plaintiffs have been damaged in a sum to be determined at trial an award of attorney's fees is appropriate pursuant to 42 U.S.C. §1988.

SIXTH CAUSE OF ACTION**MONELL CLAIM**

121. Plaintiffs repeat and re-allege each of the preceding allegations contained in this Complaint with the same force and effect as if fully set forth herein.

122. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the United States Constitution.

123. The aforementioned customs, policies, usages, practices, procedures and rules of Defendant City of New York, the NYPD and ACS included, but were not limited to, the inadequate screening, hiring, retaining, training and supervising of its employees that was the moving force behind the violation of Plaintiffs' rights as described herein. As a result of the failure of the Defendant City of New York to properly recruit, screen, train, discipline and supervise its officers, including the Individual Defendants, Defendant City of New York has tacitly authorized, ratified and has been deliberately indifferent to, the acts and conduct complained of herein.

124. The aforementioned customs, policies, usages, practices, procedures and rules of Defendant City of New York, the NYPD and ACS included, but were not limited to: arresting innocent persons in the case of the NYPD and causing unnecessary petitions in the case of ACS in order to meet quotas or for professional advancement, overtime compensation, and/or other objectives outside the ends of justice; and/or manufacturing false evidence against individuals in an individual effort and also in a conspiracy to justify or cover up a failure to properly investigate, false statements, and/or, not limited to, an abuse of authority after having unreasonably committed the same.

125. The foregoing customs, policies, usages, practices, procedures and rules of the Defendant City of New York, the NYPD and ACS constituted deliberate indifference to Plaintiffs' safety, well-being and constitutional rights.

126. The foregoing customs, policies, usages, practices, procedures and rules of Defendant City of New York, the NYPD and ACS were the direct and proximate cause of the constitutional violations suffered by Plaintiffs as described herein.

SEVENTH CAUSE OF ACTION

STATE LAW TORT MALICIOUS PROSECUTION

127. Plaintiffs hereby incorporate by reference all of the foregoing paragraphs and further alleges as follows.

128. That the Plaintiff Robert Nieves' rights have been violated pursuant to Article I Section 12 of the New York New York State Constitution to be free from unreasonable search and seizure.

129. That the said acts, were caused by the Defendants and unidentified Defendants without any legal justification.

130. That the said malicious prosecution was instigated by Defendants, their agents, servants and employees, without any legal justification to wit, without probable cause and based upon the individually named Defendants' knowingly false statement that Plaintiff committed the crimes of felony sexual abuse and criminal sexual acts.

131. Defendants' false statements and false information caused the initiation of criminal proceedings against the Plaintiff.

132. That Plaintiff was arraigned on criminal charges and a criminal prosecution continued against him.

133. That a Family Court petition was also initiated and continued against Plaintiff.

134. That the said initiation and continuation of family court and/or criminal proceedings was instigated and caused by the Defendants and by the individually named Defendants providing false information, without authority of the law and without any legal basis or probable cause to believe that Plaintiff was in fact guilty of crimes.

135. There was no information sufficient to support a reasonable belief that an offense had been committed.

136. The Defendants' acts were shocking and were performed by the Defendants with deliberate and reckless disregard for the truth and with malice.

137. In fact, all charges against Plaintiff were dismissed; the indictment was dismissed and the petition was dismissed.

138. As a direct and proximate result of the Defendants' actions, Mr. Nieves remained incarcerated for one week and both Plaintiffs were deprived of their family's integrity for two and one-half years.

139. That by reason of the malicious prosecution, Plaintiff has been damaged as set forth above.

140. At the time and place of the occurrences herein described, the individually named police Defendant officers were acting in the course and scope of their employment by the Defendant NYC.

141. That the Defendant NYC is liable for the acts of the individually named police Defendants under the doctrine of *respondeat superior*.

142. By reason of the foregoing, Plaintiff demands compensatory damages and punitive damages against all of the Defendants.

EIGHTH CAUSE OF ACTION**STATE LAW TORT-NEGLIGENT SUPERVISION, TRAINING,****HIRING AND RETENTION**

143. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the prior paragraphs with the same force and effect as if more fully and at length set forth herein.

144. At all times hereinafter mentioned and at the time of the occurrences herein and prior thereto, the Defendants, NYC, and unidentified officers and ACS employees, owed a duty of care to Plaintiffs to use reasonable care in the hiring, training, supervision and retention of its employees, including the Individual Defendants.

145. At all times hereinafter mentioned and at the time of the occurrences herein and prior thereto, the Defendants, NYC, and unidentified Defendants owed a duty of care to Plaintiffs to use reasonable care in the hiring, training, supervision and retention of its employees, including the individually named Defendants, to ensure that they properly performed their duties without falsely arresting and maliciously prosecuting innocent people and removing their children, such as the Plaintiffs.

146. Upon information and belief, the Defendants, NYC, and unidentified Defendants, were negligent in hiring, training, retaining and supervising the Individual Defendants whom NYC, and unidentified Defendants, knew, or in the exercise of due care, should have known, were unfit to perform their duties.

147. NYC, and unidentified Defendants, were negligent in hiring, training, retaining and supervising the individually named Defendants whom NYC, and unidentified Defendants,

knew, or in the exercise of due care, should have known, were unfit to follow and carry out decision making skills, protocols, procedures, rule, regulations and the law.

148. NYC, and unidentified Defendants, were negligent in failing to exercise proper supervision; in negligently hiring, training, retaining and otherwise supervising the Individual Defendants whom NYC knew, or in the exercise of due care, should have known, did not have the proper comportment and judgment to carry out and perform their duties.

149. NYC, and unidentified Defendants, were negligent in failing to exercise proper supervision; in negligently hiring, training, retaining and otherwise supervising the Individual Defendants whom NYC, and unidentified Defendants, knew, or in the exercise of due care, should have known, did not have the proper comportment and judgment to follow, exercise, and employ proper procedures and protocol.

150. Upon information and belief, the Defendants, NYC, and unidentified Defendants, were negligent in failing to have, use and enforce proper protocols and procedures to uncover, investigate, discharge, suspend or otherwise discipline employees including the Individual Defendants.

151. Defendants NYC, and unidentified officers, including the Individual Defendants would confront said issues/encounters/situations in their work.

152. Defendants NYC, and unidentified officers, knew that individual, including the Individual Defendants, would confront said issues/encounters/situations in their work, and that, without training, would fail to employ proper protocols and procedures.

153. Defendants NYC, and unidentified officers, knew that individuals, would confront said issues/encounters/situations in their work, and that, without the proper

comportment, and/or judgment, and/or decision making skills would fail to employ proper protocols and procedures.

154. Defendants NYC, and unidentified Defendants, were negligent, careless, reckless and deliberately indifferent in training and supervising, as and for its employees, including the Individual Defendants, in that the said Defendants would confront said issues/encounters/situations in their work and that, without proper training and supervision, would make wrong and incorrect decisions regarding the arrest, prosecution, removal and treatment of individuals.

155. The negligence and negligent acts of the Defendants were the proximate cause of Plaintiffs' injuries.

156. Plaintiffs additionally rely upon the doctrine of *res ipsa loquitur*.

157. At the time and place of the occurrences herein described, the Individual Defendants were acting in the course and scope of their employment by the Defendant NYC.

158. That the Defendant NYC is liable for the acts of the individually named Defendants under the doctrine of *respondeat superior*.

159. By reason of the foregoing, Plaintiffs demand compensatory damages and punitive damages against all of the Defendants.

WHEREFORE, Plaintiffs pray for relief as follows:

A. That the Court award compensatory damages to him and against the Defendants, jointly and severally, in an amount to be determined at trial;

B. That the Court award punitive damages to him, and against all individual Defendants, in an amount to be determined at trial, that will deter such conduct by Defendants in the future;

- C. For a trial by jury;
- D. For pre-judgment and post-judgment interest and recovery of his costs, including reasonable attorneys' fees pursuant to 42 U.S.C. § 1988 for all 42 U.S.C. § 1983 claims; and
- E. For any and all other relief to which he may be entitled.

Dated: Garden City, New York
November 2, 2017

BARKET MARION EPSTEIN & KEARON, LLP

By:



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